

T H E
MUSGRAVE CONTROVERSY:

B E I N G

A COLLECTION OF
CURIOUS AND INTERESTING PAPERS,

ON THE

SUBJECT OF THE LATE PEACE.

L O N D O N,

Printed for J. Miller, No. 2, Queen's-Head-Passage, Newgate-street; and
sold by S. Bladon, No. 28, Paternoster-Row; F. Blyth, at the Royal Ex-
change; and J. Almon, Piccadilly.

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Title: The Musgrave controversy
being a collection of curious and interesting papers, on the subject
of the late peace

Author: Charles Geneviève Louis Auguste André Timothée d' Eon de
Beaumont
Samuel Musgrave

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*** START OF THE PROJECT GUTENBERG EBOOK THE
MUSGRAVE CONTROVERSY ***

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COPY of the DEVONSHIRE INSTRUCTIONS.

To Sir RICHARD WARWICK BAMPFYLDE, Bart. and JOHN PARKER,
Esq; Knights of the Shire for the County of DEVON.

We, the Freeholders of the County of Devon, assembled in a General Meeting at the Castle of Exon, find ourselves called upon by many weighty considerations to exercise the constitutional and unquestionable right of instructing our Members with regard to their conduct in Parliament. It becomes now more highly necessary, when an opinion has been publicly avowed, derogatory from that relation which ought to subsist between the Electors and their Representatives. We, therefore, enjoin you to promote and support an enquiry into all those grievances that have so justly alarmed the subjects of this kingdom; particularly, for what reasons a magistrate, in the immediate service of the Crown, to whom informations of the most important nature were imparted by a native and Freeholder of this County, refused to examine or enquire after the evidence pointed out to him; being a person the most capable of clearing up the affair, both from his own knowledge, and the papers *then* in his possession; in consequence of which refusal, secrets of the most important nature to the safety of this kingdom have been probably lost, and the alledged instruments of dishonour to his Majesty's government *screen'd* from censure and punishment; and that you will diligently pursue an enquiry into the criminal transactions referred to in that information; and that you also use your utmost endeavours to shorten the duration of Parliaments.

Voted at the Castle of Exon, Oct. 5, 1769.

THE
MUSGRAVE CONTROVERSY,

*An ADDRESS to the Gentlemen, Clergy, and
Freeholders of the County of Devon,
preparatory to the General Meeting at Exeter
on Thursday the 5th of October, 1769.*

By Dr. MUSGRAVE,
Physician at Plymouth.

GENTLEMEN,

The sheriff having summoned a meeting of the county in order to consider of a Petition for redress of grievances, I think it incumbent on me as a lover of my country in general to lay before you a transaction, which, I apprehend, gives juster grounds of complaint and apprehension than any thing hitherto made public. Having long had reason to imagine that the nation has been cruelly and fatally injured in a way which they little suspect, I have ardently wished for the day, when my imperfect information should be superseded by evidence and certainty. That day, I flatter myself, is at last approaching, and that the spirit which now appears among the Freeholders will bear down every obstacle that may be thrown in the way of open and impartial enquiry.

I need not remind you, Gentlemen, of the universal indignation and abhorrence, with which the conditions of the late peace were received by the independant part of the nation. Yet such is the candid, unsuspecting nature of Englishmen, that even those who condemned the measure did not attribute it to any worse motive than an unmanly impatience under the burdens of the war, and a blind, headlong desire to be relieved from them. They did not conceive that persons of high rank and unbounded wealth could be seduced by gold to betray the interests of their country, and surrender advantages, which the lives of so many heroes had been willingly

sacrificed to purchase. Such a supposition, unhappily for us, is at present far from incredible. The important secret was disclosed to me in the year 1764, during my residence at Paris. I will not trouble you with a detail of the intermediate steps I took in the affair, which, however, in proper time I shall most fully and readily discover. It is sufficient to say, on the 10th of May 1765, by the direction of Dr. Blackstone I waited on Lord Halifax, then Secretary of State, and delivered to him an exact narrative of the intelligence I had received at Paris, with copies of four letters to and from Lord Hertford. The behaviour of Lord Halifax was polite but evasive. When I pressed him in a second interview to enquire into the truth of the charge, he objected to all public steps that might give an alarm, and asked me whether I could point out to him any way of prosecuting the enquiry in secret, and whether in so doing there was any probability of his obtaining positive proof of the fact. I was not so much the dupe of his artifice as to believe that he had any serious intention of following the clue I had given him, though his discourse plainly pointed that way. It appeared by the sequel that I had judged right. For having four days after given a direct and satisfactory answer to both his questions, he then put an end to my solicitations by a peremptory refusal to take any steps whatever in the affair.

It is here necessary to explain what I mean by enquiring into the truth of the charge. In the summer of the year 1764, an overture had been made to Sir George Yonge, Mr. Fitzherbert, and several other Members of Parliament, in the name of the Chevalier D'Eon, importing that he, the Chevalier, was ready to impeach three persons, two of whom are Peers and Members of the Privy Council, of selling the peace to the French. Of this proposal I was informed at different times by the two gentlemen above-mentioned. Sir George Yonge in particular told me that he understood the charge could be supported by written as well as living evidence. The step that I urged Lord Halifax to take, was to send for the Chevalier D'Eon, to examine him upon the subject of this overture, to peruse his papers, and then to proceed according to the proofs. In such a case a more decisive evidence than the Chevalier D'Eon could not be wished for. He had the negociation on the part of the enemy, and was known to have in his possession the dispatches and papers of the Duke de Nivernois. This gentleman, so qualified and so disposed to give light into the affair, did Lord Halifax refuse to examine; whether from an apprehension that the

charge would not be made out, or on the contrary that it could. I leave you, gentlemen, and every impartial reader to judge.

It must not be understood, that I can myself support a charge of corruption against the noble Lords named in my information. My complaint is of a different nature and against a different person. I consider the refusal of Lord Halifax as a willful obstruction of national justice, for which I wish to see him undergo a suitable punishment. Permit me to observe, gentlemen, that such an obstruction not only gives a temporary impunity to offenders, but tends also to make that impunity perpetual, by destroying or weakening the proofs of their guilt. Evidence of all kinds is a very perishable thing. Living witnesses are exposed to the chance of mortality, and written evidence to the not uncommon casualty of fire. In the present case something more than these ordinary accidents might with good reason be apprehended. It stands upon record that the Count de Guerchy had conspired to assassinate the Chevalier D'Eon, neither has this charge hitherto been refuted or answered. This not succeeding, a band of ruffians was hired to kidnap that gentleman, and carry off his papers. Though this second attempt failed, it does not follow that these important papers are still secure. I was informed by Mr. Fitzherbert, so long ago as the 17th of May, 1765, that he had then intelligence of overtures making to the Chevalier D'Eon, the object of which was to get the papers out of his hands in return for a stipulated sum of money. This account I communicated the following day to Lord Halifax, who still persisted in exposing those precious documents to so many complicated hazards. I say precious documents, because if they should be unfortunately lost, the affair must be for ever involved in uncertainty, an uncertainty, gentlemen, which may be productive of infinite mischiefs to the nation, and cannot tend to the advantage or satisfaction of any but the guilty.

Lord Halifax, in excuse for his refusal, will probably alledge, as he did to me, his persuasion that the charge was wholly groundless. I need not observe, how misplaced and frivolous such an allegation is when applied to justify a magistrate for not examining evidence. But I will suppose for argument's sake the persons accused to be perfectly innocent. Is it not the interest and the wish of every innocent man to have his conduct scrutinized while facts are recent, and truth, of consequence, easy to be distinguished from falshood? Is there any tenderness in suffering a stain to remain upon

their characters till it becomes difficult, or even impossible to be wiped out? Will therefore these noble persons, if their actions have been upright, will they, I say, thank Lord Halifax for depriving them of an early opportunity of establishing their innocence? Will they not regret and execrate his caution, if the subsequent suppression or destruction of the evidence should concur with other circumstances to fix on them the suspicion of guilt? How will Lord Halifax excuse himself to his Sovereign, for suffering so atrocious a calumny to spread and take root, to the evident hazard of his royal reputation? And what amends will he make to the nation for the heart burnings and jealousies which are the natural fruits of such a procedure? Yet these, gentlemen, are the least of the mischiefs that may be apprehended from his behaviour upon the footing of his own plea.

I will venture however to assert, that, as far as hitherto appears, the weight of evidence and probability is on the contrary side. Now, supposing the charge to be true, there can be no need of long arguments to convince you of the injury done to the nation, by suffering such capital offenders to escape. For what is this but to defraud us of the only compensation we can expect for the loss of so many important territories, a loss rendered still more grievous by the indignity of paying a pension, as we notoriously do, to the foreign ministers who negociated the ruinous bargain? Yet even these considerations are infinitely out-weighed by the danger to which the whole nation must be exposed from the continued operation of so much authority, influence, and favour to their prejudice, and, above all, from the possibility that the supreme government of the kingdom may, by the regency-act, devolve to a person directly and positively accused of high treason. Even the encouragement that such an impunity must give to future treasons, is enough to fill a thinking mind with the most painful apprehensions. We live in an age, not greatly addicted to scruples, when the open avowal of domestic venality seems to lead men, by an easy gradation, to connexions equally mercenary with foreigners and enemies. How then can we expect ill-disposed persons to resist a temptation of this sort, when they find that treason may be detected, and proofs of it offered to a magistrate, without producing either punishment or enquiry? The consequence of this may be, our living to see a French party, as well as a court party, in parliament; which, should it ever happen, no imagination can sufficiently paint the calamitous and horrid state to which our late glorious triumphs might finally be reduced. When I talk of a French party in parliament, I do not

speaking a mere visionary language unsupported by experience. The history of all ages informs us, that France, where other weapons have failed, has constantly had recourse to the less alarming weapons of intrigue and corruption. And how effectual these have sometimes been, we have a recent and tragical example in the total enslaving of Corsica.

I have been thus particular in enumerating the evils that may result from the refusal of Lord Halifax, not from a desire of aggravating that nobleman's offence, but merely to evince the necessity of a speedy enquiry, while there is yet a chance of its not being wholly fruitless. Though the course of my narrative has unavoidably led me to accuse his Lordship, accusation is not my object, but enquiry, which cannot be disagreeable to any but those to whom truth itself is disagreeable. In pursuing this point, I have hitherto been frustrated from the very circumstance which ought to have insured my success, the immense importance of the question. It has been apprehended, how justly I know not, that any magistrate, who should commence an enquiry, or any gentleman who should openly move for it, would be deemed responsible for the truth of the charge, and subjected to severe penalties, if he could not make it good. This imagination, however, did not deter me, though single and unprotected, from carrying my papers to the Speaker, to be laid before the late House of Commons. The Speaker was pleased to justify my conduct, by allowing, that the affair ought to be enquired into, but refused at the same time to be instrumental in promoting the enquiry himself. What then remained to be done? What, but to wait, though with reluctance and impatience, till a proper opportunity should offer for appealing to the public at large, that is, till the accumulated errors of government should awaken a spirit of enquiry too powerful to be resisted or eluded? That this spirit is now reviving, we have a sufficient earnest in the unanimous zeal you have shewn for the appointment of a county meeting. In such a conjuncture, to withhold from you so important a truth, would no longer be prudence, it would be to disgrace my former conduct, it would shew that I had been actuated by some temporary motives, and not by a steady and uniform regard to national good. Indeed, the declared purpose of your meeting is in itself a call upon every freeholder to disclose whatever you are concerned to know. I obey this call without hesitation, submitting the prosecution of the affair to your judgment, in full confidence that the result of your deliberations will do honour at the same time to your prudence, candour, and patriotism.

Plymouth, Aug. 12, 1769.

***Reponse du Chevalier D'Eon a la lettre que M. le
DOCTEUR MUSGRAVE a fait imprimer dans le
Public Advertiser du 2 Sept. 1769, No. 10869,
& qui a ensuite ete copiee dans tous les autres
papers, sous la datte de Plymouth, le 12 Aout,
&c.***

MONSIEUR,

Vous me permettrez de croire que vous ne m'avez jamais plus connu, que je n'ai l'honneur de vous connoitre: & si dans votre lettre du 12 Aout vous n'aviez pas abuse de mon nom, je ne me verrois pas force d'entrer en correspondance avec vous.

Vous pretendez que “dans l'ete de 1764, on fit des ouvertures en mon nom a differens membres du parlement, portantes que j'etois pret a accuser trois personnes, donc deux etoient pairs, et membres au conseil prive, d'avoir vendu la paix a la France;” & vous paroissez fonder la dessus l'evidence de l'accusation, que vous dites en avoir porte vous memes a Milord Halifax.

Je vous declare en consequence ici Monsieur, que je n'ai jamais ni fait faire aucune ouverture pareille, ni dans l'hiver, ni dans l'ete de 1764, ni dans aucun tems. Je suis d'une part trop fidele au ministere que j'ai rempli, et de l'autre trop zelateur de la verite.

J'avoue que vous ne dites pas que ce soit moi qui aie fait ces propositions: Mais seulement qu'elles ont ete fait en mon nom, specialement a M. le Chevalier George Yonge & a M. Fitzherbert.

Je vous assure ne connoitre aucun de ces Messieurs & n'avoir jamais autorise qui que ce soit a faire, en mon nom, de pareilles ouvertures, que mon horreur seule pour la calomnie me feroit detester.

Je vous interpelle donc, M. le Docteur, de declarer au public le nom du temeraire qui s'est servi du mien pour faire ces ouvertures odieuses. Ces Messieurs que vous avez denonce comme vos temoins, ne peuvent vous refuser de venger leur veracite & la votre.

Quoique je ne puisse m'empêcher de louer votre droiture qui cite ses auteurs, cependant il me paroît de la dernière imprudence, dans une affaire d'une pareille gravité, de vous fonder sur un rapport pour nommer publiquement un homme de mon caractère, sans l'avoir auparavant consulté. Si vous vous étiez souvenu du démenti que j'ai donné dans le S. James's Chronicle du 25 Octobre 1766, No. 881, a un avertissement du même papier, No. 875, qui portoit en substance ce que vous alleguez dans votre dernière lettre, vous m'auriez épargné la peine de vous répondre aujourd'hui. Qu'en va-t-il arriver? Le public aura lu avidement votre lettre, aura ajouté foi a son contenu parceque vous en appelez a mon évidence: Mais qu'en pensera t-il maintenant? quand votre intérêt, mon honneur & la vérité m'obligent a nier ce que vous y avancez a mon sujet.

Il en est de même de ce que vous prétendez que “vers le 17 Mai 1765, M. Fitzherbert vous auroit dit savoir qu'on m'avoit fait des propositions de vendre pour une somme d'argent les papiers qui étoient entre mes mains.”

Je me suis toujours flatté de l'estime & de l'amitié des Anglois avec lesquels j'ai vécu. Qui d'eux dans ces sentimens auroit osé me témoigner assez de mépris pour me faire une pareille proposition? L'injure m'en auroit été d'autant plus sensible que le caractère de la personne auroit été plus respectable.

Je ne vous suivrai, Monsieur, ni dans les démarches que vous avez cru devoir faire, ni dans les raisonnemens dont vous vous servez pour les appuyer: Ceux-ci montrent l'orateur & celles-la, si elles sont fondées, prouvent le patriote. Mais je vous atteste ici, sur ma parole d'honneur & a la face du public, que je ne puis vous être d'aucune utilité, que je ne suis jamais entré en marche pour la vente de mes papiers, & que je n'ai jamais, ni par moi-même ni par aucun agent autorisé de ma part, proposé de fait voir que la paix avoit été vendue a la France.

Si Milord Halifax, ou l'orateur, auxquels vous dites vous être adressé pour m'appeler en témoignage sur la validité de votre accusation, m'avoient fait citer; ils auroient connu par mes réponses que je pense que

l'Angleterre a plutot donne de l'argent a la France, que la France de l'or a l'Angleterre pour conclure la derniere paix et que le bonheur que j'ai eu de concourir au salutaire ouvrage de cette paix m'a inspire les sentimens de la plus juste veneration pour les commissaires Anglois qui y ont ete employes, & ceux de la plus vive estime & de la plus sincere admiration pour feu M. le Comte de Viry qui, par son attachement pour le bien des deux nations belligerantes & graces a son zele infatigable, eut la gloire d'amener cette paix necessaire aux deux nations a une heureuse conclusion. Jugez maintenant, Monsieur, avec quelle solidite vous pouvois vous fonder sur moi pour rendre votre accusation evidente!

Je suis trop connu en Angleterre pour avoir eu besoin de cette reponse, si la franchise de votre lettre me n'avoit paru meriter que je vous empeschasse de faire des demarches ulterieures qui ne pouroient tourner qu'a votre prejudice, puis qu'elles ne seroient fondees que sur de faux rapports de mes actions. Pour vous mettre a meme d'etre aussi prudent que patriote, je signe cette lettre & vous y donne mon adresse, afin que, pour soutenir votre veracite, vous me donniez les moiens de convaincre publiquement les calomniateurs, qui ont ose se servir de mon nom, d'une maniere plus contraire encore a la verite des faits, qu'a la dignite avec laquelle, J'ai toujours soutenu mon caractere au milieu meme de la persecution de mes ennemis.

J'ai l'honneur d'etre votre tres humble serviteur,

LE CHEVALIER D'EON.

*In Petty-France, Westminster,
4 Septembre, 1769.*

Translation of the Chevalier D'Eon's Answer to Dr. Musgrave's Address.

SIR,

You will permit me to believe that you never knew any more of me, than I have the honour of knowing of you: and if in your letter of the 12th of August you had not made a wrong use of my name, I should not now find myself obliged to enter into a correspondence with you.

You pretend that “in the summer of the year 1764, overtures were made in my name to several members of parliament, importing that I was ready to impeach three persons, two of whom were peers and members of the privy council, of having sold the peace to the French:” and you seem to found thereupon the evidence of a charge, which you say you carried yourself to Lord Halifax.

I declare, therefore, here, Sir, that I never made, nor caused to be made any such overture, either in the winter or summer of the year 1764, nor at any other time: I am, on one side, too faithful to the office I filled, and on the other too zealous a friend to truth.

I confess you do not say it was I that made these overtures; but only that they were made in my name, particularly to Sir George Yonge and Mr. Fitzherbert.

I assure you I do not know either of these gentlemen, and never authorised any person whatever to make in my name such overtures, which the abhorrence alone I have for calumny, would make me detest.

I call upon you, therefore, Sir, to lay before the public the name of the audacious person who has made use of mine to cover his own odious offers. The gentlemen whom you have given as your witnesses, cannot deny you this justification of their own veracity and your's.

Though I cannot but commend your integrity in citing your authors, yet it appears to me an act of the last imprudence, in an affair of so much weight, to build upon report, for naming publickly a person of my character,

without having previously consulted him. If you had recollected the contradiction I gave in the St. James's Chronicle of Oct. 25, 1766, No. 881, to an advertisement in the same paper, No. 875, importing in substance what you alledge in your last letter, you had saved me the trouble of replying to you at this time. What must be the result? The public will have read greedily your letter; will have believed it's contents, because you appeal therein to my testimony: but what will they think now when your own interest, my honour and truth oblige me to deny all that you have advanced thereon with respect to me.

It is the same with your pretence that "about the 17th of May, 1765, Mr. Fitzherbert told you, he knew that overtures had been made to me to sell for a sum of money the papers that were in my hands."

I have always flattered myself with being possessed of the esteem and friendship of the English with whom I have lived. Who of them then in these sentiments would have presumed to have shewn sufficient contempt for me to have made me such an overture? The injury would have been the more sensibly felt by me, as the character of the person was more respectable.

I shall not follow you, Sir, either in all the steps you have thought it your duty to take, or in the arguments you made use of to support them: these shew the orator, and those, if they be well founded, prove the patriot.

But I here certify to you, on my word of honour, and in the face of the public, that I cannot be of any sort of use to you; that I never entered into any treaty for the sale of my papers, and never either by myself or any agent authorised on my part, offered to make appear, that the peace had been sold to France.

If Lord Halifax, or the Speaker, to whom you say you addressed yourself in order to call upon me as evidence, with respect to the validity of your charge, had caused me to be cited, he might have known by my answers what my thoughts were, that England rather gave money to France than France to England, to conclude the last peace; and that the happiness I had in concurring to the great work of peace has inspired me with sentiments of the justest veneration for the English commissioners who had been employed in it, and with the most lively esteem and sincerest admiration for the late Count de Viry, who in his attachment to the welfare of the two

nations then at war, and thanks to his indefatigable zeal! had the glory of bringing that peace to a happy conclusion.

Judge now, Sir, with what solidity you can depend upon me to make your charge clear.

I am too well known in England to have been under any necessity of this reply, if the frankness of your letter had not appeared to me to merit my preventing you from taking any further steps, which could not but turn to your prejudice, in as much as they would be founded solely on false reports of my proceedings.

In order to enable you to be as prudent as patriotic, I sign this letter, and therein give you my address, that for the maintenance of your own veracity you may furnish me with the means of convicting publicly those slanderers who have dared to make use of my name, in a manner still more repugnant to real facts, than the dignity with which I have ever supported my character.

I have the honour of being your most humble servant,

The Chevalier D'EON.

In Petty France, Westminster.

To ***Charles-Genevieve-Louis-Auguste-Andre-Timothee D'Eon de Beaumont, Chevalier de l'ordre roial & militaire de S. Louis,*** ^[1] ***Ministre Plenipotentiaire de France aupres du Roi de la Grande Bretagne, Capitaine de Dragons au service de sa Majeste tres Chretienne, Avocat au Parlement de Paris, Censeur roial pour l'Histoire et les Belles Lettres en France, &c.***

LETTER I.

SIR,

I have read with particular attention your letter to Dr. Musgrave, and can no longer be in doubt what your business at present is in a country where you are an *outlaw*.

You exhibit to us a character most singularly profligate. You alone in this age have had it in your power to be equally false and treacherous to two such great nations as England and France. While you were only secretary to the Duke of Nivernois, you abused the privileges of your character, and engaged in the dirty business of *debauching our manufacturers*. You so entirely forgot the dignity of your rank afterwards, when Minister Plenipotentiary, that you continued the same practice, although it is contrary to the law of nations. You do not even blush to charge this article of expence in the state of your disbursements to the Comte de Guerchy. “Avance aux ouvriers Anglois de la manufacture de toiles peintes, tant hommes que femmes, debauché par le Sieur *L'Escalier* a Londres et des environs pour les faire passer ailleurs 195l.” *Lettres, Memoires, &c.* p. 172. The meanness and rascality of such an employment in you and Monsieur

L'Escalier can only be equalled by the tameness and ignominy of the administration at that time in suffering *L'Escalier*, a notorious pimp and an *outlaw* here, to be after this in the public character of *Secretary* of the Comte de Guerchy. The attestations of *L'Escalier's outlawry* were printed here, witnessed by Solomon Schomberg, a Notary Public, and by the Lord Mayor. They were dispersed at the Hague, to serve the purpose of shewing at a certain juncture that England was bullied by France. You afterwards quarrelled with all your best friends, as well as with the ministers of your fortune, and your own Court, which had raised you so rapidly from nothing, from being a writer to the police at Paris on the pension of 600 livres, or 25 guineas a year, to the dignity of Minister Plenipotentiary at the most important Court in Europe. Modern times scarcely produce an instance of political treachery equal to your's in printing the secrets of the Court by whom you were employed, and the private letters of your benefactor the Duke of Nivernois, of Monsieur Sainte-Foy, Monsieur Moreau, &c. Your particular quarrel with Guerchy had nothing to do with the sentiments of the Duke of Nivernois, of Mess. Sainte-Foy, Moreau, and other gentlemen, on the conduct of the French parliament, the administration of their finances, &c. which were intrusted to you, as their private friend, under the seal of secrecy. You betrayed their confidence without the least provocation on their part, or a pretence of justification of your own conduct from any one circumstance in those letters. After quarrelling with almost all your own countrymen, you published in the same volume a gross abuse of this nation, and called the English a parcel of fools and madmen, at the very time that this country afforded you an honourable protection, and an hospitality you have abused. "Après deux secousses de tremblement de terre, qui arriverent ici en 1750, *un soldat enthousiaste* s'avisa d'en predire un troisieme, qui devoit renverser Londres. Il se dit inspire, & d'un ton enthousiaste en fixa le jour, l'heure, & la minute. Londres consterne au souvenir des deux secousses qui s'étoient suivies dans l'intervalle d'un mois, & plus effraie encore a l'approche d'un troisieme & plus terrible tremblement que ce soldat enthousiaste avoit annonce pour le 5 d'Avril, la ville s'est montree susceptible de toutes sortes d'impressions. Plus de 50 mille habitans, sur la foi de cet oracle, avoient ce jour-la pris la fuite: la plupart de ceux que les raisonnemens ou les raillerie de leurs amis avoient retenue, attendoient en tremblant l'instant critique, & n'ont montre de courage qu'après qu'il a ete passe. Le jour arrive, la prophetie, semblable a la plupart des predictions, ne

fut point accomplie; le faux Samuel fut mis un peu tard aux petites maisons & *la tete de ces fiers insulaires si senses & si philosophes ne fut pas a l'epreuve de la prophetie d'un fou.*" P. 14. I believe there is not to be found so gross and silly an abuse of a whole nation for the weakness of a few hysteric women, and superannuated men, nor so false a representation of any fact. Were your other dispatches to your court, Sir, composed of such wretched stuff as this? I hope the *bottle-conjurer* finds his place in the second part of your *memoires*. That innocent joke of the late Duke of Montague, your countrymen generally talk and write of as a serious proof of the folly and credulity of this nation. The English laughed at your weak attack on them as a nation, and superior to such abuse, desired that you might continue to enjoy the protection of their noble system of laws, and the privileges of their country. They considered their own glory, not the worthlessness of the individual. They would have parted with so insignificant a wretch as you without the least regret; but they would not suffer you to be forced away, nor kidnapped, merely because it would have been an outrage to their laws, and the honour of their nation. They too, as politicians, thought you might be induced to make some discoveries, and were ready to profit by your treason to your own country in the secrets you might reveal for the benefit of their's, but at the same time they would have abhorred the traitor. When I mention the English nation as anxious for your safety, I mean the body of the people. The administration *at that time* wished that you might be carried off to France. Mansfield and Norton saw Guerchy often on the occasion, and Sandwich signed more than one warrant to apprehend you. The French ministry, and the people here in power at that time, planned your destruction; but the generosity of two or three individuals saved you, and preserved a viper in the bosom of their country. Now is just the season for such noxious reptiles to come forth. They always meet the approaching storm. Leagued with the enemies of our country, whether French or English, your slender abilities are still employed against a nation you hate, but in your heart honour and revere. After having for some years talked very openly of the wonderful discoveries you could make, and the impeachment you could support, after frequently declaring, that *you had two heads in your pocket*, when a worthy gentleman steps forth and states the charge, you at once recoil, and declare that you do not even believe a word of it, but think that *l'Angleterre a plutot donne de l'argent a la France, que la France de l'or a l'Angleterre pour conclure la derniere*

paix. So absurd an idea I shall not undertake to refute, because I believe you are the only man *at large*, who entertains it; but I shall in this first address to you, desire you to state *two* facts to the public, relative to the subject of your letter to Dr. Musgrave. The *first* is, What was the negotiation relative to the island of *Porto-Rico*? The Duke of Bedford set out for Paris, Sept. 5, 1762. Every thing of importance was soon entirely settled between the two courts. The most material arrangements had been made here in private with Lord Bute before his Grace's departure. The news of the taking the Havannah was afterwards first received in England, while the Duke was in Paris, on Sept. 29. Now I ask what alteration in the terms of the treaty did such important intelligence produce? What was to be given England, additional to the former stipulations, in consequence of the surrender of the Havannah, when that likewise was to be given up? You are called upon to state that transaction; what you know of the ten days cession of Porto Rico to us by the negotiation at Paris, and the subsequent surrender of that island on the receipt of *two* letters from hence, one of which the Duke of Bedford ought to produce for his justification in *that part* of the business; the other is too sacred to appear. The *second* question I shall now ask is, *whether you have not declared that you were offered 7000 louis for your papers?* Your letter to Dr. Musgrave is extremely evasive on this head. You say, "Je me suis toujours flatte de l'estime & de l'amitie *des Anglois* avec lesquels j'ai vecu. *Qui d'eux* dans ces sentimens auroit ose me temoigner assez de mepris pour me faire une pareille proposition?" No, Sir, *no Englishman* was employed in so dirty a business; but one of your own country was found to make the proposition, to which you objected. You said the sum was too trifling for papers of such importance. My other letters shall give the world more truths; for I will drag you forth to the public view, not merely as a trifling Frenchman, trifling in every thing serious, and serious only in trifles, but as the enemy of England, as a pensioned tool of a wicked ministry, who hope by your means to trifle or perplex an enquiry, which may not stop at your patron, the detested *Thane*, to whom, although a Frenchman, you have sacrificed the great *Sully* in the most fulsome and lying of all dedications, prefixed to your pirated *Considerations Historiques & Politiques sur les Impos*.

Your connections, Sir, are at length discovered, and the plan of your operations, so secretly concerted by Bute's three deputies, Jenkinson, Dyson, and *Target* Martin, at a house in Pall Mall, which governs this

kingdom, shall be given to the public. You will experience, that although English generosity makes us always ready to give refuge and protection to a distressed foreigner, even from the country of our inveterate enemies, we will not suffer among us a French traitor and a spy, in the pay of an administration odious to this whole nation. I shall only at present add, that one of your friends will soon prove to you that your own poet *Corneille* says very truly,

Et meme avec justice on peut trahir un traître.

I am, Sir,

An ENGLISHMAN.

Sept. 11, 1769.

[\[1\]](#) The Chevalier D'Eon began in this manner the affidavit he made Dec. 28, 1764, although his public character had been superseded by the French King, and declared at an end by the King of England, above a year before.

LETTER II.

To the Chevalier D'Eon.

SIR,

The warm applause you give to the peace of Paris, and the negociators of it, both English and French, did not in the least surprise me. You were well paid for it at the time, and the private advantages derived to you from it did not cease with its *ratification*. The peace itself was in its own nature so infamous, and so peculiarly *felonious* to this country, which it robbed of almost all its noble conquests, that no Englishman was judged proper to be sent with the authentic ratification of such a French bargain. It was given to you *contre toute regle & contre toute usage*, as the Duke de Praslin says in your *Memoires*; and the Duke of Nivernois observes in a letter to the Duke of Bedford, that it was *une galanterie de votre ministere, & une bonte du Roi votre maitre, qui se sert avec plaisir* D'UN FRANCOIS *pour cette tournure*. Besides, at the very time of the negociation you held the Ambassador's pen; and altho' you were never entrusted with the most important secrets between the two courts, you were employed in the revisal of that fatal instrument which tore from our bleeding warriors the fruits of all their victories, the greatest acquisitions your rival nation had ever made. You are allowed to have much chicanery; and the tricking article about the Canada Bills was the effect of your duping the Duke of Bedford, and the good-humoured Mr. Neville. You may therefore with reason speak of the peace of Paris in terms of rapture, as a Frenchman, and as the Duke of Nivernois's secretary. I will ever mention it with indignation; for I am an Englishman, and have not that load of guilt to expiate to my country, the advising, making, or *approving* so ruinous a measure. You are, however, Sir, by no means singular in your opinion of the late *peace* even in this nation. We too have many traitors among us. A set of gentlemen at Westminster gave an *entire approbation* of the *preliminary articles*, even with the very extraordinary original clause about the East-India Company among them. Their bankers best know how that *approbation* was obtained; but their successors, altho' careless about the national debt, have had the prudence as

well as foresight for themselves, to pay off all debts contracted on that account.

You speak with some degree of modesty concerning yourself when you mention the peace of Paris, as if conscious that you had only been employed to toll the bell for the funeral of England's departed glory and fame. When you mention Count Viry, you are quite lavish in his praises, knowing how much he had been a principal in that accursed treaty. I respect the dead; but only the departed virtuous and good. I distinguish characters, notwithstanding the trite maxim of *de mortuis nil nisi bonum*. I will never confound a Cato and a Cataline, but will give to each their due. I execrate the memory of Count Viry, as the enemy of my country, as having been a principal in robbing England of the *Havannah*, *PORTO RICO*, *Martinique*, *Guadelupe*, *Desiderade*, *Mariegalante*, *St. Peter*, *Miquelon*, *Goree*, *Belleisle*, *St. Lucia*, &c. and negotiating a treaty which has proved the salvation of France. I believe you have, besides the general cause of the peace, which saved France, two particular reasons for the regard you testify to the memory of Count Viry. The first is the very dexterous management he used to get the claim of a sugar island from France waved, in which you knew she was ready to have acquiesced. The other is, the protest he signed in favour of the House of Savoy, which he procured to be legally attested and given in at the time of the last coronation, in the name of his master, the present King of Sardinia. He too in your time had printed the *Genealogie de la Famille Royale d'Angleterre*, by which he hoped at a future day that the ridiculous claims of his master's family, as being, although Papists, immediately descended from Henrietta Maria, the daughter of Charles I. would have prevailed over those of the House of Brunswick, who are descended from Elizabeth, Electress Palatine, one degree more remote from the Crown, as being the daughter of James I. You both expected at least a general confusion speedily among us; but neither you, nor he, born under arbitrary governments, could have any idea of the only lawful right to the crown of these realms, a parliamentary right. The contrary doctrine was in Queen Anne's time expressly declared to be *high treason*, by a particular statute, the "Act for the better securing her Majesty's person and government, and the succession to the crown of England in the protestant line;" *That if any person or persons, from and after the 25th day of March 1706, shall maliciously, advisedly and directly, by writing or printing, declare, maintain, or affirm that the Kings or Queens of England, with and*

by the authority of the parliament of England, are not able to make laws and statutes of sufficient force and validity to limit and bind the crown of this realm, and the DESCENT, LIMITATION, INHERITANCE, and government thereof, every such person or persons shall be guilty of High Treason, and being thereof convicted and attainted, &c. &c. Count Viri acted by the express orders of his Court, in conjunction with your's. In the same manner the two Courts acted in concert at the beginning of this century, in the last year of our glorious Deliverer, King William III. Count Maffei, the Ambassador from Savoy, delivered in the first famous protestation, in the name of the Duchess of Savoy, against the Hanover succession, at the time the Duke himself commanded the French army in Italy, with Marshal Catinat and the Prince of Vaudemont under him, and every action of his life was dictated by France. I believe you therefore *unusually* sincere, when you express, "la plus vive estime & la plus sincere admiration pour feu Monsieur le Comte de Viry, qui par son attachement pour le bien des deux nations belligerantes & graces a son zele infatigable, eut la gloire d'amener cette paix necessaire aux deux nations a une heureuse conclusion." What this *happy conclusion* for England was, we have already seen. From that fatal moment France, like a tall bully, began again to lift the head, and insult all its neighbours.

You tell Dr. Musgrave, "le public aura lu avidement votre lettre, aura adjute foi a son contenu parceque vous en appelez a mon evidence." You are mistaken. Your evidence of itself will have little weight with any one, but you may have papers of importance, which the public expected from *your own absolute promise*. The last page of your tiresome quarto promised a second volume on the first of June 1764, and a third the first of September. You ought to have given them at the stipulated time, and to have made them as valuable as you could from the materials of others, were it only to indemnify us for having waded through the family dullness and impertinence of the letters to your mother, nurse, &c. &c. What did the Scot give you for the suppression? Was it as much as you had for the dedication, in which you tell him that you find "dans les portraits du Duc de Sully & de Milord Bute une ressemblance assez parfaite, de grandes vertus, l'amour de la patrie (*Scotland I suppose*) de la philosophie; la profondeur d'un politique, l'eloquence d'un homme d'etat, cette activite d'esprit qui donne les succes & les revers, ce coup d'œil qui demele les objets meme au milieu du trouble, qui fait le grand negociateur, &c. &c." Upon my word you

merited the whole sum he gave you, let it have been ever so considerable. But did you believe one single feature of *Bute* was like *Sully*? I am satisfied no more than your master the Duke of Nivernois, Ambassador and Academician, one of your *quarante immortels*, believed that the Kings of England and France were *faits pour s'aimer, formed to love each other*, although he declared so at St. James's with the utmost gravity, and afterwards printed it, like a compliment of the French Academy, only in both French and English for the amusement of the two nations. The flattery of the French ambassador and secretary succeeded. The English monarch and his Scottish minister were equally captivated; and the most gallant army in Europe were left to regret that they had not once the honour even of a visit from our sovereign during the whole war, or before they were disbanded. The early and dangerous intrigues, the specious flattery of a home favourite, and an insinuating foreign minister, but above all the holding out in such terms, *le caractere distinctif d'une bonne foi non equivoque*, at which the King of Prussia has so much laughed, lulled asleep all heroism, suspicion, and even curiosity.

You are very just, Sir, in the observation, that the public read with great eagerness Dr. Musgrave's letter. The reason is plain. The fact, that French gold made the last peace, was long ago believed; but the public rejoiced when a man of Dr. Musgrave's unblemished reputation stated the presumptive evidence in general terms to his countrymen of Devonshire, because then it seemed impossible any longer to stifle the enquiry. You say, "Je vous interpelle donc, M. le Docteur, de declarer au public le nom du temeraire qui s'est servi du mien pour faire ces ouvertures odieuses." The Doctor does not say that he ever heard the name of the person, who, *in your name*, applied to Sir George Yonge, Mr. Fitzherbert, and several other members of parliament. He only declares that Sir George Yonge and Mr. Fitzherbert informed him *at different times that an overture had been made IN THE NAME of the Chevalier d'Eon, importing that he, the Chevalier, was ready to impeach three persons, two of whom are peers and members of the privy council, of selling the peace to the French*. Why do you not make your appeal to these two gentlemen? If neither of the placemen should chuse to answer, if they are either fearful or false, if the *boards of admiralty and trade* have exacted at least a promise of secrecy, I will name a third person to you, a character unexceptionable, of a candour, probity, and honour equal to Dr. Musgrave's, superior I believe never existed. I mean

Thomas Cholmondeley, Esq; the late member for Cheshire, a relation of Lord Chatham. My reason for naming this gentleman you will see in the following passage. "It is true (*Pitt*) assisted in the first debate upon General Warrants in 1764; but finding that some of the party were in earnest in their designs of going farther, and had prepared a motion against the seizure of papers, which was, in fact, the great grievance; and also finding that the *favourite* dreaded the minority gaining a victory, lest the party should be afterwards turned against him; and that the *favourite* had therefore supported the administration with all his might upon this occasion, the great patriot scandalously withdrew from the cause and the party; thereby *preventing* any point being then gained towards that security of public liberty, which the whole kingdom so ardently wished for and expected. A short time afterwards, when an IMPEACHMENT OF THE FAVOURITE was privately rumoured among a few only; and it was said, that there was strong evidence ready to be given, *particularly with regard to the peace*; when a certain baronet, and others, who took some pains in order to come at this evidence, and the conditions upon which it might have been obtained were trifling, not pecuniary (*the pardon of the Chevalier D'Eon is here meant*) and who thought it necessary that the great Commoner should be consulted upon a subject of such importance, especially too as he was looked upon to be the fittest person to lead, or principally support such a procedure; and when, in consequence of that idea, he was applied to by one of his own friends, and, in some measure, a distant relation, he checked the whole in the bud, by declaring vehemently against it." *An enquiry into the conduct of the late Right Honourable Commoner*, page 26, &c. published in 1766. The strange phrase *Pitt* used was, *that he would set his foot on the head of the man who first moved the enquiry, and crush him to atoms*. I am very glad to hear that the *three brothers* are at last united, and that there is now not only a family, but a political union among them. I venture however to prophesy, that two of the three will never promote an enquiry into the transactions of the last *peace*, or the conduct of the *favourite*, and I therefore hope all the friends of the public will be on their guard against them both. They cannot safely be trusted with the conduct of this important business. The *apostate* had in 1764 his peerage and place of Privy Seal in view, for which he then sold his friends and his country. He now looks forwards to a more lucrative office, a larger pension to recruit his shattered finances, and perhaps to a higher title, which he may probably get, if he can keep the favourite's head on his

shoulders. I wish however the *triumvirate* of brothers success, because I think a *triumvirate*, which should be only insolent and overbearing, is infinitely to be preferred to a sole minister who is cruel; and *delights in blood*.

I should before this, Monsieur le Chevalier, have apologized to you for the frankness of my proceeding with respect to you, and the plain language of my heart, but really my nature is open and undisguised. I detest flattery and foolish compliments. I call things generally by their names, *j'appelle un chat un chat, et rolet un fripon*. Besides your example ought to weigh in an address to you. The ambassador extraordinary and plenipotentiary of your court, a Cordon Bleu, who represented the person of the Most Christian King, you repeatedly in the grossest manner call *ane extraordinaire*, and you add, *la truie n'ennoblit pas le cochon*. Monsieur Bussy, the late French minister here, is with you a *bourreau*. Your language even to your own mother is particularly rude. You advise a tender affectionate parent, in tears for the misconduct of a son she loved, to *wipe her eyes, plant her cabbages, weed her garden, eat her greens, and drink the milk of her cows and the wine of her vineyard*, without giving herself any trouble about you. The letter to your nurse, Madame Benoit a Tonnerre, is rather more obliging. You talk of all her *soins et peines passees*, and then very elegantly add, that *you are well at present, but should be better if you could see her soon*. To her you act the *signor magnifico*; you actually send her one hundred livres, or near four pounds and eight shillings sterling. How interesting is all this to the public? how glorious to you? But to return to your poor mother, whom I heartily pity. You tell her in return for her concern, that you have read *toutes les lettres lamentables et pitoyables que vous avez pris la peine de m'ecrire: pourquoi pleurez vous, femme de peu de foi?* You make use here, Sir, of our Blessed Saviour's words in a very strange and indecent manner. You speak of him in your last publication, *in a most daring and really impudent stile*. In the *Pieces Authentiques*, page 13, your words are, *on n'accusa point Jesus Christ au Banc d'Herode d'avoir debite des libelles; cependant ce que notre seigneur a avance n'a jamais ete si bien prouve que ce que le Chevalier D'Eon a demontre par ses LETTRES ET MEMOIRES. Jesus Christ was not accused at Herod's Bench of having published libels; although what our Saviour advanced was never so well proved as what the Chevalier D'Eon has demonstrated in his LETTERS AND MEMOIRS*. After all these

instances I shall conclude without the least compliment to you, with only saying, that

I am, Sir,

An ENGLISHMAN.

To the PRINTER.

Lord B. and his toad eater the D. of G. both knew the contents of Dr. Musgrave's letter many weeks before it made its appearance. They had concerted many schemes to suppress its publication; but all these schemes, however artfully managed, proved abortive. Lord B. who came fresh from the school of politics at Rome, embraced still the same propensity for absolute monarchy as he did before he departed from England. He is grown, indeed, more cautious, more masked, but not a jot less enterprising. Foiled in his well-concealed attempts to prevent the publication of Dr. Musgrave's letter, his next attempt was to render the publication of it inoperative and ineffectual. The difficulty lay in compassing this desirable end. He knew very well that one ***** had married a cast-off, who formerly held no mean rank in his toad eater's seraglio: this same *****, his Lordship knew had been confidently intrusted at different times, with the most important secrets of Mr. Wilkes, the Chevalier D'Eon, and Lord Temple, and therefore the only fit person to be confidentially entrusted, as far as his Lordship might deem necessary, with the opening a negotiation for a treaty of union between the Earls of B—e, T—e, E——t, C——m, Lord H——d, and the petulant Duke of B———. Such a coalition, with his toad eater at the head, he rightly conceived, would be able to stem any torrent of opposition, were it to roll mountains high. But his Lordship, it will be seen, counted without his host. His first intention was to dispatch ***** to Stow. This measure could not be carried into execution but by another mode of application. ***** had already forfeited Lord T——e's confidence, but he did not care to acquaint either G. or B. with this secret, which could not but be fatal to his own views; he therefore artfully declined going to Stow himself, adding, that the embassy would have greater weight, and probably better success, was the D. of G. to wait in person on Lord T———. ***** pretended to know the very bait that would tempt his Lordship; it was nothing less than a Dukedom, and if he *****, was to make the offer, Lord T——e, he said, might doubt the performance. By this device and advice of *****, B. and his toad eater were easily betrayed into a fond belief of gaining over Lord T. to their faction.

Accordingly, the D. of G. was posted down to Stow, and this truly courtly visit was immediately announced in every news-paper throughout the kingdom. The success of this visit is no longer a mystery. The wild, incoherent, crude plan of operations, were conveyed, without loss of time, to Fonthill, and from Fonthill it soon arrived at Plymouth. Dr. Musgrave finding this once formidable and blood-thirsty faction tottering, and failing of support from Lord T. thought it a glorious opportunity to crush the whole junto, by hanging them out to public view and public odium. With this view, and to do justice to a brave, but greatly injured people, the Doctor, with a courage not to be daunted, published that well-timed letter, which has already unfilm'd the eyes of every subject in the kingdom, and which, in a few days, will receive a further elucidation from

The BRITISH SPY.

To the PRINTER.

In my former letter I furnished your readers with an anecdote relative to Mr. *****. This man, who is connected with his Grace the D. of G. by the apron-string tenure; the present modish, and by much the strongest of all holds, has been constantly and most secretly employed for these last six weeks, as a go-between to the D. of G. and the Soi-disant l'Homme de Caractere, M. D'Eon.

To throw a veil over this mysterious negociation, and in order to blind the eyes of the prying public, the pretty Frenchman who lives in Petty France, has for this fortnight past been roaring out in every coffee-house he frequents, that Mr. *****, the go-between above-mentioned, has betrayed his most sacred secrets to the D. of G. and the whole B——d junto. This flimsy, gausy device, was no sooner made public, but it was seen through by every tyro in politics. And the Frenchman was compelled by his new employers to lay aside the mask. He was ordered by this new sett of masters, who will always tyrannize over him in proportion to the pension they give him: he was ordered I say flatly to deny every circumstance in Dr. Musgrave's patriotic letter, and boldly to assert, "that he never entered into any treaty for the sale of his papers." Nothing is so easy to a Frenchman, especially if they have been once initiated into the diplomatic corps, as to assert one thing for another, where they know they cannot for the present moment be detected. But what will the good people of England think of the veracity of this same Frenchman, when I call upon him in this public manner to declare for what reason, at whose instigation, and for what valuable consideration in money, he suppressed the publication of *those three letters* relative to the late peace-makers?

I know, Mr. Printer, I speak ænigmatically to the generality of your readers, when I talk of three letters. But the D. of B——d understands me; Lord B—— understands me; and D'Eon, if he has any regard for truth, ought to blush at the bare mention of those three letters. There is but one moral tie can bind a French gentleman, that is, his word of honour. Let D'Eon then, if he dare, lay his hand upon his Croix de St. Louis, and swear,

upon his *honour*, that he never received directly or indirectly, without equivocation, or mental reservation, any money, pension, emolument, or promise, for suppressing the publication of the three letters in question, and he shall either be credited, or publickly confuted, by

The BRITISH SPY.

To the PRINTER.

Doctor Musgrave's address to the freeholders of the county of Devon, and the Chevalier D'Eon's answer to it, having engrossed the public attention, give me leave, first, to consider the nature and tendency of the address, and then to make a few remarks on the Chevalier's answer.

Mr. Musgrave has told us a series of facts within his own knowledge, the authenticity of which are corroborated by the names of the parties concerned, and the periods in which they were transacted. He tells us, that Sir George Yonge, Mr. Fitzherbert, and other members of parliament, informed him at different times, that the Chevalier D'Eon was really to impeach three persons of selling the peace to the French—that Sir George Yonge in particular told him, that he understood the charge could be supported by written as well as by living evidence. By the direction of Dr. Blackstone, Mr. Musgrave went to Lord Halifax *on the 10th of May, 1765*, and delivered to him an exact narrative of the intelligence he had received at Paris concerning the late peace, and at the same time gave him copies of four letters to and from Lord Hertford. *On the 17th of May, 1765*, just seven days after he delivered the narrative to Lord Halifax, Mr. Fitzherbert told the Doctor, that overtures were then making to the Chevalier D'Eon to get his papers from him for a stipulated sum of money. Lord Halifax, although repeatedly pressed by Doctor Musgrave to enquire into the truth of the charge, first, objected to all public steps that would lead to the truth, to avoid giving *an alarm*; and, at last, absolutely refused to take any cognizance of it, either in private or public. Thus frustrated in every application to the secretary of state, the Doctor carried his papers to the Speaker, who very readily allowed the expediency of their being laid before the House of Commons, but at the same time peremptorily refused to promote the enquiry.

This, Sir, is the substance of Dr. Musgrave's address, which carries with it such a face of authenticity, that nothing but a public investigation of the facts can exculpate the parties concerned. As to the tendency of it, every

unprejudiced reader must allow, that the public good, and not an inclination to aggravate the guilt of any particular person, was his object.

If the allegations contained in the address are not fairly stated—if Doctor Musgrave has been guilty of injuring private characters, and of imposing falshoods on the public—why, in God’s name, is he not contradicted?—Why do not the accused exculpate themselves?—Why are not the public undeceived?—Why should *they* be silent whose conduct is principally arraigned, and a vindication, such as it is, be published by a man, whose veracity in this respect is by no means to be relied on? For when his papers were purchased from him, the condition of the obligation no doubt was, that their contents should be buried in oblivion.

When the official conduct of a secretary of state, or of any other servant of the crown, is arraigned, the public have an undoubted right to be satisfied either of their guilt or innocence, in order that the law of the land may in either case take effect. When the character of an honest man is unjustly and publicly attacked, he will not postpone the vindication of his innocence until a legal enquiry can be set on foot in a court of law; he ought to exculpate himself through the same channel he has been accused. Therefore, until Doctor Blackstone tells us the conversation that passed between him and Mr. Musgrave, previous to his waiting on Lord Halifax—Until Lord Halifax informs us whether Doctor Musgrave did or did not deliver to him a narrative of the intelligence he had received at Paris, concerning the peace in 1764, and likewise publish the copies of the four letters to and from Lord Hertford; which, as they are of a public nature, his *politeness* need not stumble at—Until Sir George Yonge and Mr. Fitzherbert publicly deny every circumstance relative to their several conversations with Doctor Musgrave, especially what passed between Mr. Fitzherbert and him *on the 17th day of May, 1765*—And until the Speaker acquaints us with the reason why he allowed the expediency of laying these important papers before the House of Commons, and at the same time *refused to promote the enquiry*—Until all these matters are promulged and sufficiently authenticated, the impartial and dispassionate part of mankind must and will give credit to the facts contained in the address.

I come now, Sir, to make a few remarks on the Chevalier D’Eon’s answer, which I shall do with the same impartiality I have considered the

address, and leave the public to draw the line between the honest sincerity of the Englishman, and the evasive *finesse* of the Frenchman.

Monsieur le Chevalier, notwithstanding his long residence in England, and the esteem and friendship he is favoured with from *some* of the inhabitants (the reason of which he knows best) still preserves his *native* insincerity and politeness. His letter to Dr. Musgrave is as foreign to the purpose of an answer to the address, as the conduct of our present ministry in suffering his master, the Grand Monarque, to conquer Corsica, was foreign to the faith of treaty, and repugnant to the interest of this kingdom—than which no two positions can be more opposite.

The Chevalier has very *politely* passed some French compliments on the doctor's oratory and patriotism—has talked a good deal of his own integrity and zeal for truth—blames him for naming a person of his *vast* consequence in so public a manner, and manfully denies every circumstance he is publicly known to have been concerned in at the time mentioned in the address. But what does all this amount to with respect to Mr. Musgrave's allegations? He, indeed, very justly says, that the evidence of the Chevalier would have been decisive at the time he urged Lord Halifax to send for him to examine him, and to peruse his papers which he *then* had in his possession; but in his address to the freeholders of Devon, he neither desires nor expects any proofs from him *now*, because he either knows, or shrewdly suspects, that no written evidence is now to be found in his custody.

The Chevalier desires to know the person or persons in this country, who would have presumed to make an overture to him for the sale of his papers—I wish to God I could tell him!—or rather that I could tell the public—for the Chevalier himself, I dare say, wants no information in that affair. It is much to be wished, however, that Lord Halifax or the Speaker had examined the Chevalier, and that it might at least have been known what sum was paid by England, and for what consideration it was given to France, at the conclusion of the last ever memorable and glorious peace.

TULLIUS.

LETTER I.

To Dr. MUSGRAVE, of PLYMOUTH.

SIR,

The meritorious and intrepid manner in which you have stepped forth, and called the public attention to the negotiation of the last infamous peace, deserves the thanks and applause of your country. As an individual of this country, not wholly unacquainted with some parts of that negotiation, you have my poor thanks: but thanks alone are not sufficient in such a cause; I should hold myself the basest of Englishmen, if I did not contribute my mite towards accomplishing a full and impartial enquiry into the manner in which that important work was conducted. Such parts of the negotiation as have accidentally come to my knowledge, I shall freely relate. If my account is true, as I have great reason to believe it is in general, I hope it will warm some virtuous man to stand up in his place, and call for the papers relating to that negotiation. In a pamphlet, intituled, *The present State of the Nation*, &c. p. 24, 8vo. edit. published last winter, there is this extraordinary passage, evidently alluding to these papers, which I have often wondered was not taken notice of; “Whether by the treaty Great Britain obtained all that she might have obtained, is a question to which those only who were acquainted with the secrets of the French and Spanish cabinets can give an answer. *The correspondence relative to that negotiation has not been laid before the public*; for the last parliament approved of the peace as it was, without thinking it necessary to enquire whether better terms might not have been had.”

The secret of the negotiation, or ultimatum, on the part of England, was neither in the D. of B. the B. A. at Paris; nor in the late Earl of Egremont, the *official* minister at home, who was Secretary of State for the Southern department; but between Lord Bute and the Sardinian Minister in London, and the Duc de Choiseul and the Sardinian Minister at Paris.

The fact, of thus committing the management of the most important affairs of Great Britain to the Ministers of a foreign power, is extraordinary and alarming, and ought to be considered as highly criminal; especially

when we recollect, that the Sardinian Minister in London, at the time of his present Majesty's coronation, signed a protest in favour of the House of Savoy, which he procured to be legally attested and given in, in the name of the King his master. He printed, or caused to be printed, 'the *Genealogie de la Famille Royale d'Angleterre*, by which he hoped, at a future day, that the ridiculous claims of his master's family, as being, although Papists, immediately descended from Henrietta Maria, the daughter of Charles I. would have prevailed over those of the House of Brunswick, who are descended from Elizabeth, Electress Palatine, one degree more remote from the crown, as being the daughter of James I. He might hope for a general confusion among us; but being born under arbitrary government, he could not have the least idea of the only lawful right to the crown of these realms, a parliamentary right. The contrary doctrine was in Queen Anne's time expressly declared to be *high treason* by a particular statute, the "Act for the better securing her Majesty's person and government, and of the succession to the crown of England in the Protestant line;" *'That if any person or persons, from and after the 25th day of March, 1706, shall maliciously, advisedly and directly, by writing or printing, declare, maintain, or affirm that the Kings or Queens of England, with and by the authority of the parliament of England, are not able to make laws and statutes of sufficient force and validity to limit and bind the crown of this realm, and the DESCENT, LIMITATION, INHERITANCE, and government thereof, every such person or persons shall be guilty of High Treason, and being thereof convicted and attainted, &c. &c.* Count Viri acted by the express orders of his Court, in conjunction with the Court of France. In the same manner the two Courts acted in concert at the beginning of this century, in the last year of our glorious Deliverer, King William III. Count Maffei, the Ambassador from Savoy, delivered in the first famous protestation, in the name of the Duchess of Savoy, against the Hanover succession, at the time the Duke himself commanded the French army in Italy, with Marshal Catinat and the Prince of Vaudemont under him, and every action of his life was dictated by France.'

The present Count V. (who, during his late father's life time, was known by the name of M. De Verois) had a pension granted him for his services in this negociation of 1000l. per ann. on the Irish establishment, though not in his own name. In the *debates relative to the affairs of Ireland, in the years 1763 and 1764, &c. inscribed by permission to Lord Chatham*, we find this

fact mentioned, Vol. II. page 475, by Mr. Edmund Sexton Perry, who thus speaks: "I shall communicate a fact to this House. There is a pension granted nominally to one George Charles, but really to Monsieur De Verois, the Sardinian Minister, for negotiating the peace that has just been concluded with the Minister of France. I must confess, Sir, that, in my opinion, this service deserved no such recompence, at least on our part. If it is thought a defensible measure, I should be glad to know, why it was not avowed; and why, if it is proper we should pay 1000l. a year to Mons. De Verois, we should be made to believe that we pay it to George Charles."

Besides the above pension, there was certainly a remittance from France or Spain, or both, of a considerable sum of money; but for whom it was designed is not at present so certainly known. However, there is no doubt that Count V. is thoroughly acquainted with the whole of this transaction: but now that the affair of the peace begins to be enquired into, he is preparing to depart the kingdom; and has actually sold his pension upon the Irish Establishment for 16000l. or thereabouts.

When the D. of B. set out for Paris, which was on the 5th of September, 1762, he had *full powers* to treat with the French ministry upon the terms of peace. But when he arrived at Calais, a messenger was dispatched after him, containing a limitation of those powers. Upon which, he instantly dispatched the same messenger back to London, declaring (by letter) he would proceed no further, unless his former instructions were restored. He waited at Calais for the return of this messenger, who brought a restoration of his former instructions. However, he submitted, notwithstanding this affected spirit, to see the conquests of a glorious war bargained for and surrendered by the two Sardinian ministers. In a word, the D. made no important figure in the negotiation, till an event turned up, which seemed, by the confusion it occasioned, to be totally unexpected. This was the capture of the Havannah.

This being only an introductory letter, my next, I hope, will be more worthy of your attention; at least, it will contain some important truths. I am, Sir,

Your most humble servant,

An ENGLISHMAN.

LETTER II.

To Dr. MUSGRAVE of PLYMOUTH.

SIR,

My last letter concluded with the mention of the conquest of the Havannah. The news of this important conquest arrived in England on the 29th of September, 1762, while the treaty of peace was negotiating. Until this period, the D. of B—— had little or no trouble in the negotiation, for the principle articles or great outlines of the terms of peace had been previously settled between Lord Bute and Mons. De Verois (now Count Viry) in England, and the Duc de Choiseul and the Sardinian minister at Paris.

At this time the Right Hon. G—— G—— was Secretary of State for the Northern department, and by his office (being a commoner) was to carry the peace through the House of Commons, when it should be laid before the House. When the news of the conquest of the Havannah came, and it was directly determined by the Favourite to give up this important island, because it should not embarrass the negotiation, nor impede the conclusion of the peace, Mr. G—— differed, and, in particular, insisted upon an indemnification for it, from either France or Spain. He wanted St. Lucia and Porto Rico, or the entire property of Jucatan and Florida. The Favourite refused to make application for any of these; upon which Mr. G—— resigned October 12, 1762^[2]. Mr. Fox (now Lord Holland) was then called upon to carry the peace through the House of Commons. Lord Halifax succeeded to Mr. G——'s office. But Lord Egremont, being of Mr. G——'s opinion, prevailed to have an instruction sent to the D. of B—— to demand Florida only, which was granted without hesitation; for the messenger who was dispatched to the Duke at Paris with this demand, returned in eight days, with an account of its having been complied with. The fact is, the French minister (Choiseul) obliged the Spanish minister to agree to this demand, without sending to his court. A proof of the discretionary power which was vested in the French minister by the court of Spain, to agree to whatever compensation should be insisted upon for the Havannah.

The following anecdote concerning the English Ultimatum may throw some light on the preceding fact:—Towards the latter end of the negociation, Mr. Wood, then Secretary to Lord Egremont, called one day at the Duc de Nivernois's (the French Ambassador in London) about three o'clock, and desired to speak with him. The Swiss told Mr. Wood, his Excellency was dressing, and could not be disturbed: but Mr. Wood insisting upon admittance, was carried up stairs, and passing through a bed-chamber leading to the dressing room, he laid some papers upon the bed, and covered them with his hat. This circumstance being observed by the French Secretary, he directly whispered the Ambassador to keep Mr. Wood to dinner, and he would copy the papers if they contained any thing essential. This was accordingly done: and these very papers, which contained nothing less than the Ultimatum on the part of England, were actually copied by the French Secretary and his clerks, and dispatched that very night to the Duc de Choiseul at Paris. Thus the French Minister at Paris was in possession of these important papers at least two days before the D. of B——.

In a subsequent conference which the D. of B—— had with the French Minister, he urged a compliance to his demands in a high and peremptory tone; the wily French Minister smiled, and told his G. *He knew the sentiments of the court of London upon the whole business.*

It was the current report in England, when the D. of B—— returned from France, that he had frequently said to his friends, that he could have obtained better terms of peace if he had been permitted. If he was controuled, why does he not now shew those instances of controul, and who it was that obliged him to sacrifice the conquests of the war? As he is known to keep a diary of all public transactions wherein he is concerned, there is no doubt of his being able to give full information; and as days and dates are sometimes of importance in affairs of this kind, his diary will assist him greatly on this occasion. Besides, his letters are somewhere in existence; the Chevalier D'Eon never saw them, and consequently a motion in the H—— of C—— might produce them. We should then see who were the betrayers of our country in that infamous peace: And who it was that so frequently pressed his G. to conclude the negociation, and sign the treaty. The originals of all these important letters are still in being; and if they should not, there is no doubt the D. has a copy of them in his diary. I repeat

it emphatically, the correspondence relative to the negotiation ought to be laid before the public. The Commons of England have a right to call for it; and it is a duty which they owe to their country and to posterity.

Whether the immediate cession of Florida, or what other cause that has not yet transpired, encouraged the demand of Porto Rico, or whether the D. of B. knowing Mr. G——’s sentiments, made that demand himself, finding Florida so easily given up; certain it is, that a demand of that important island was made; and here the French Minister resorted to his chicane. A messenger was sent with this demand to the Court of Madrid. Fourteen days were allowed for the messenger to return. During this interval, the D. received express and positive orders *to sign the treaty immediately*. Two days after the treaty was signed, and within the fourteen days, the messenger returned from Madrid, with the surrender of the island. It has been suspected, perhaps from the complexion of the fact, that the island was purchased. If it was, Count V. no doubt, knows both the sum that was given, and to whom it was consigned. If any sum actually was given, it was by Spain; for the view of France was, to make Spain pay the piper.

My next will contain some further particulars of this extraordinary negotiation.

I am, Sir,

Your humble servant,

An ENGLISHMAN.

[2] In the pamphlet, intituled, *An Appendix to the State of the Nation*, we find this fact strongly pointed at, p. 16, wherein the author says, in reply to the *Observer*: “If he means to charge the great statesman (Mr. G.) who was Secretary of State at the time the plans for the reduction of Martinique and the Havannah were carried into execution, with consenting to restore them *without compensation*; I must tell him, that it was publicly spoken of, at the time the treaty of Paris was negotiating, that this gentleman resigned his office of Secretary of State for no other reason, *than that further cessions in the West Indies were not insisted on.*” And in the *Observations on the State of the Nation*, we find that author not unacquainted with this part of the negotiation, though, agreeable to the principles of the party he espouses, it is but faintly touched; page 29, 8vo edit. are these words, “If this gentleman’s hero of finance, instead of flying from the treaty, which, though he now defends, *he could not approve*, and would not oppose; if he, instead of shifting into an office, *which removed him from the manufacture of the treaty,*” &c.

LETTER III.

To Dr. MUSGRAVE of PLYMOUTH.

SIR,

The article respecting the East-India Company, is a demonstration that better terms of peace might have been obtained, if they had been insisted upon. During the negociation Mr. Wood waited upon Mr. Rous, on the subject of an article, including the Company's affairs, to be inserted in the treaty. An article was accordingly framed, and sent to the ministers, who said it was impossible to obtain what was therein demanded. They altered it: and if it had been permitted to remain with their alterations, as it had been agreed to by the French ministers, and as it stood in the preliminaries, the interests of the Company would have been essentially injured. But Lord Clive opposed it; and in consequence of this opposition, it was altered to the form in which it now stands in the general treaty.

With regard to the *present*, or rather *new* treaty of commerce, the following is not a little curious.

When the D. of B. Mr. N——le, and the Ducs de Choiseul and Praslin were together at Choiseul's hotel, at a conference on the peace, the D. of B. said, he would not renew the treaty of Commerce that was made at Utrecht, because some of the articles had been objected to by the British parliament. The subject dropped after a short conversation upon it: and they proceeded to renew the treaty of Aix la Chapelle, and other matters. At length the D. of B. renewed the subject of the treaty of commerce: upon which Choiseul said, the treaty of commerce had never been mentioned during the negociation. But, answered the D. it has always been understood. Choiseul replied, you must either take the treaty of commerce as it now is, between the two nations (meaning that which was offered to be renewed) or there must be no treaty of commerce at all. The D. of B. declared, he would not accept of that treaty; nor would he sign the treaty of peace unless a treaty of commerce was previously agreed to. And so, says Choiseul, you want to carve that treaty just as you please; to put in some articles, and to strike out others—*No!* said he in an exclamation, and turning about to a picture of the

French King, which hung up in the room, and clasping his hands together, cried out, *My dear master! when I sacrifice your honour, take off my head.*

Mr. N——le then said, Mons. Choiseul, what better would you be if that treaty was renewed? The British parliament would disapprove of it, and the D. of B. would be impeached for it.—Think you so, said Choiseul?—Yes, answered the D. of B. and added, if you do not consent to the making a new treaty of commerce, I will return to England to-morrow morning, and tell the K. there is no honour in the French ministry; that he must send for Mr. PITT, who is the only man to deal with them, and renew the war. The name of *Pitt* frightened the French minister; he gave up the contest. A treaty of commerce was made; but has not been published, nor was it laid before parliament.

During the negotiation, the Duc de Choiseul was constantly complaining of the English news-papers; which, he said, were continually publishing the terms of the peace; and these papers coming into France, he added, induced the French to think, and say, he was sacrificing the interest of France in that treaty; which he apprehended might occasion some enthusiast to assassinate him. In complaisance to him, and to quiet his fears on that head, it was, that no authentic defence or even authentic account of the negotiation and treaty, was ever published.

Every reader will make his own observations on this series of *extraordinary* FACTS. I have given them to the world without any of those advantages which they might have derived from a detail in fine language, being convinced, *that plain truth needs no flowers of speech.* I am, SIR,

Your most humble servant,

An ENGLISHMAN.

FINIS.



Transcriber's Note

A number of probable printers' errors were identified and corrected during the preparation of this e-text:

[Page 8](#), "oppor-" changed to "opportunity" (an early opportunity of)

[Page 13](#), "dons" changed to "dans" (alleguez dans votre derniere lettre)

[Page 22](#), "tremble mentque" changed to "tremblement que" (plus terrible tremblement que ce soldat)

[Page 31](#), "conjuccion" changed to "conjunction" (his Court, in conjunction with your's)

[Page 32](#), "pui" changed to "qui" (activite d'esprit qui donne les succes)

[Page 37](#), "n'enoblit" changed to "n'ennoblit" (la truye n'ennoblit pas le cochon)

[Page 37](#), "burreau" changed to "bourreau" (is with you a *bourreau*)

[Page 42](#), "dress" changed to "address" (tendency of the address)

[Page 42](#), "gentlemen" changed to "gentleman" (can bind a French gentleman)

[Page 43](#), "absosolutely" changed to "absolutely" (at last, absolutely refused)

[Page 50](#), "conjuccion" changed to "conjunction" (in conjunction with the Court of France)

[Page 52](#), duplicated word "an" removed (till an event turned up)

[Page 53](#), "negocitien" changed to "negociation" (no trouble in the negociation)

[Page 53](#), duplicated word "and" removed (and the Duc de Choiseul)

[Page 56](#), "preremptory" changed to "peremptory" (in a high and peremptory tone)

[Page 56](#), "Tho" changed to "The" (The originals of all these important letters)

[Page 57](#), "negociaaion" changed to "negociation" (particulars of this extraordinary negociation)

Punctuation errors were amended without note.

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